

judgment to determine the correct winner of the foreclosure sale, and that Plaintiff was harmed by the trustee's reliance. (Complaint, ¶¶ 23-30.) Although Plaintiff alleges that he relied on Defendant's misrepresentation to the foreclosure trustee, Plaintiff fails to allege that Defendant made a false misrepresentation that was directed at Plaintiff for the purpose of inducing Plaintiff to rely upon the misrepresentation to his detriment.

2nd Cause of Action for Unjust Enrichment:

"Unjust enrichment is not a cause of action," but rather, is "just a restitution claim." (*De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 870.) In *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, the Fourth District held that the trial court properly sustained a demurrer to an unjust enrichment claim, explaining, "[a]lthough some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation] this court has recently held that '[t]here is no cause of action in California for unjust enrichment. Unjust enrichment is synonymous with restitution.'" (*Levine, supra*, 189 Cal.App.4th at 1138 [internal citations and quotations omitted].)

Defendant's General Demurrer as to the 1st Cause of Action SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 20 days.

Defendant's General Demurrer as to the 2nd Cause of Action SUSTAINED without leave to amend.

Defendant's Special Demurrer as to the 1st and 2nd Causes of Action OVERRULED.

Case Management Conference continued to November 4, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2602316	WIRED WORKS LLC VS H.N. AND FRANCES C. BERGER FOUNDATION	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: "The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]" (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) Code of Civil Procedure section 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; Code Civ. Proc., §425.16(b)(1).) First, the defendant must make the "threshold showing" that the challenged cause of action arises from "protected speech or petition activity." (*Id.*) "[T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must *itself* have been an act in furtherance of the right of petition or free speech." (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78, original italics.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under Code Civ. Proc., §425.16(e).

Second, "[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits

of the plaintiff's claim." (*Navellier v. Sletten*, *supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) "that the complaint is both legally sufficient" and (2) "supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]" (*Id.* at 89.) In analyzing this step, the court considers "the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., §425.16(b).) "Looking at those affidavits, [the courts] do not weigh credibility, nor...evaluate the weight of the evidence. Instead [the courts] accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law." (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699.) "Only a cause of action that satisfies both prongs...is a SLAPP, subject to being stricken under the statute." (*Navellier v. Sletten*, *supra*, 29 Cal.4th at 88-89.)

Defendant seeks to strike only a portion of the FAC alleging a cause of action for defamation purportedly arising out of protected activity. This is a permitted practice. Where the challenged cause of action arises from both protected and unprotected activity, i.e., a mixed cause of action, courts follow the steps established in *Baral v. Schnitt* (2016) 1 Cal.5th 376: "the unprotected activity is disregarded at [the first step of the anti-SLAPP analysis]. If the court determines that relief is sought based on allegations arising from activity protected by the statute, then second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. ... If not, the claim is stricken." (*Area 51 Productions, Inc. v. City of Alameda* (2018) 20 Cal.app.5th 581, 595, internal quotation omitted.) The Supreme Court in *Baral* reasoned that that "the Legislature's choice of the term 'motion to strike' reflects the understanding that an anti-SLAPP motion, like a conventional motion to strike, may be used to attack part of a count as pleaded." (*Baral*, *supra*, 1 Cal.5th at 393-395 [disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90, which held that a cause of action, based on both protected and unprotected activity, is not meritless and the entire cause of action will stand if a plaintiff can show a probability of prevailing on any part of its claim].) "It follows, then, that courts may rule on plaintiffs' specific claims of protected activity, rather than reward artful pleading by ignoring such claims if they are mixed with assertions of unprotected activity." (*Id.* at 393.)

The challenged claim is deemed a claim for defamation:

Here, the challenged cause of action is a claim which Plaintiffs style as negligence. Defendant contends that the mislabeled negligence claim is really a claim of defamation which it contends arises from protected activities as described under subdivision (e)(1),(2), and (4) as either "statements made before a legislative, executive, or judicial proceeding," or "statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body," or made in "furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest."

Plaintiffs oppose the motion, arguing that the eleventh cause of action is a general negligence claim that rests on Defendant's breach of multiple other duties which have nothing to do with the purported petitioning activity such as duties (1) not to make careless

representations about Defendant's intentions, (2) to properly manage the project and the parties' relationship, and (3) to take reasonable steps to protect Plaintiffs from foreseeable harms that resulted from Defendant's conduct. Plaintiffs contend that the allegation that Defendant breach its duty by "failing to investigate the truth of the statements made by Rover before transmitting them to IID and others" "could conceivably touch on petition activity but it does not turn on the contents of Rover's statements" but rather "turns on Defendant's breach of a duty arising from the parties' special relationship to manage its corporate conduct competently." Plaintiffs' argument is rejected.

Defamation is communication of a false and unprivileged statement about an individual or corporate entity and may consist of either libel or slander causing injury to plaintiff's reputation. (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1242; Civ. Code, §§ 44 [libel], 46 [slander]; See *Live Oak Publishing Co. v. Cohagan* (1991) 234 Cal.App.3d 1277, 1284 ["An entity other than a natural person may be libeled"].) The word defamed or defamatory is specifically used in the pleading in describing that Defendant, by way of its general counsel Rover, defamed or made defamatory statements about Plaintiffs, including that he falsely claimed Plaintiffs committed fraud and ethical violations, which alleged caused injuries to Plaintiffs. (FAC, ¶ 3.) Therefore, the plain language of the pleading alleges a claim for defamation. " 'As is true with summary judgment motions, the issues in an anti-SLAPP motion are framed by the pleadings.' [Citations.]" (*Medical Marijuana, Inc. v. Project CBD.com* (2020) 46 Cal.App.5th 869, 883.) "Thus, the act or acts underlying a claim for purposes of an anti-SLAPP statute is determined from the plaintiffs' allegations." [Citation.] (*Ibid.*)

Defendant fails to show the defamation claim arises out of protected activity under (e)(1) and (e)(2):

Nevertheless, Plaintiffs correctly argue that nothing in the FAC indicates that such allegedly defamatory statements were made at a governmental proceeding or concerned matters under governmental consideration or public interest, and Defendant has therefore failed to meet the threshold showing that the claim for defamation arises out of a statement which would be protected by the anti-SLAPP statute.

"The only means specified in section 425.16 by which a moving defendant can satisfy the ["arising from"] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)." (*Park v. Board of Trustee of California State University* (2017) 2 Cal.5th 1057, 1063.) The moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823, 831.) The "courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. [Citation.]" (*Ibid.*) Here, Defendant identifies the following allegations of the FAC constituting activity protected under the anti-SLAPP statute:

That Defendant "...actively defamed Plaintiffs to IID officials, government agencies, and others in the industry, falsely claiming fraud and ethical violations, thereby destroying Plaintiffs' reputation and interfering with their ability to perform on the very project they had developed." (FAC, pg. 2:24-17.)

“The very day after Vance’s removal (in March of 2025), Rover called IID’s General Manager and began making false and defamatory statements about Plaintiffs.” (FAC, pg.9:3-4.)

Defendant breached its duty to Plaintiff by “making careless representations about the Foundation’s intentions; failing to investigate the truth of the statements made by Rover before transmitting them to IID and others....” (FAC, 26:11-13.)

Here, the allegations of the pleading do not establish that the claim for defamation arises out of protected activities because the allegedly defamatory statements were made after Plaintiff had obtained the formal approval for the project. “The anti-SLAPP statute protects all petition-related activity before a governmental body whether or not the statements involve a public issue: “[A]ll that matters is that the First Amendment activity take place in an official proceeding or be made in connection with an issue being reviewed by an official proceeding.” (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 “[t]he constitutional right to petition ... includes the basic act of filing litigation or otherwise seeking administrative action....”). “[C]ommunications preparatory to or in anticipation of the bringing of an official proceeding are within the protection of section 425.16....” (*Hansen v. California Dept. of Corrections & Rehab.* (2008) 171 Cal.App.4th 1537, 1544 (Hansen).) Here, as Plaintiffs point out, the disparaging communications were neither made before an official proceeding or in connection with an issue under consideration or review by an official body because the alleged communications were made to IID’s general manager and “others” in a setting unrelated to the substation project. By March 2025, Plaintiffs had already accomplished what was needed to build the electrical substation and IID had formally approved the substation project. (FAC, ¶ 26.) Hence, any allegedly defamatory, false statements by Rover could not have contributed to IID’s approval process or concerned matters under consideration. Furthermore, the FAC does not allege that the statements culminated into any lawsuits against Plaintiffs or revocation of IID’s formal approval; rather it is alleged that Defendant retained the benefits of Plaintiffs’ labor. Nor is there allegation that Rover’s statement to IID’s general manager affected the project in any manner or that it led to IID deciding to work with another contractor. Rather, Plaintiffs’ ability to continue to work on the project was terminated by Defendant which made the decision to work with another contractor. Therefore, allegedly disparaging communications were not made in connection with an issue under review as approval had already been obtained. Not all communications made to a government agency “fall within the ambit of the anti-SLAPP statute.” (*A.F. Brown Electrical Contractor, Inc. v. Rhino Electric Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1129.) “[T]he mere fact of a government agency’s involvement in a transaction does not, without more, make a proceeding ‘official’ ” within the meaning of subdivision (e)(1) of the anti-SLAPP statute. (*Li v. Jin* (2022) 83 Cal.App.5th 481, 493.) Also, subdivision (e)(2) “ ‘does not accord protection to suits arising from any act having any connection, however remote, with an official proceeding ... [;] the statements or writings in question must occur in connection with an issue under consideration or review in the proceeding.’ ” (*Blackburn v. Brady* (2004) 116 Cal.App.4th 670, 701.) The protection under the statute therefore contemplates an “ongoing – or, at the very least, immediately pending” at the time of the communication. (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 627.)

Defendant fails to show that the defamation claim arises out of activity concerning a public interest under subdivision (e)(4):

Defendant fails to show that the defamation claim arises out of matter concerning a public interest. “A few guiding principles may be derived from decisional authorities. First, ‘public interest’ does not equate with mere curiosity.... Second, a matter of public interest should be something of concern to a substantial number of people....” (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 658.) “Third, there should be some degree of closeness between the challenged statements and the asserted public interest....” (*Ibid.*) “Fourth, the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy....’” (*Id.* at 658-659, brackets in original.) “The ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate.’ [Citation.]” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1246.) Here, the challenged allegations do not establish any of the above factors. The allegedly defamatory statements were made after Defendant removed Vance, the core decisionmaker on Plaintiffs’ involvement with the project, and immediately before Defendant pursued another partner to move forward with the project. As set forth above, allegedly Plaintiffs had already obtained the necessary approval and made the arrangements to move forward with building the electrical substation and micro grid. Any allegedly false statements about Plaintiffs’ fraud and ethical violation were not a matter concerning an ongoing review and approval of the project concerning any public interest.

Defendant, relying on *Tuschscher Development Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, argues that seeking approval of electrical-substation infrastructure through a public utility district is independently protected as relating to a matter of public interest. Defendant’s reliance on Tuchscher is inapposite. In *Tuchscher*, the court upheld the granting of a motion to strike under anti-SLAPP statute in an action brought by a plaintiff developer for intentional and negligent interference with prospective economic advantage for port commissioner’s alleged wrongful acts in advocating that city ask another developer to develop property which interfered the plaintiff’s exclusive agreement with the city granting it the rights to negotiate to develop bayfront property. (*Id.* at 1233.) Among other reasons, the court noted that the communications to either the city or another developer involving the proposed development of the bayfront property had a broad effect on the community and hence a matter of public interest protected activity under (e)(4). (*Ibid.*) Here, it is not alleged that the allegedly disparaging remark affected the approval in any way.

Defendant fails to show that allegations concerning relief for restitution are subject to a motion to strike under anti-SLAPP statute:

Furthermore, Defendant’s request to strike allegations regarding relief for restitution is without any proper basis. Specifically, Defendant seeks to strike the allegations that:

“... the Foundation retained the benefit of all of Plaintiff’s work: the IID approval, the engineering designs, the regulatory relationships, the governmental goodwill, and all documentation prepared by Plaintiffs. (FAC, pg. 9:19-21.)

“Appropriating for the Foundation’s exclusive benefit the IID approval, the engineering work product, the regulatory and political relationships, and the entire value of Plaintiffs’ year-long investment, while terminating Plaintiffs without compensation...” (FAC, 25:4-6.)

Defendant argues that these allegations must be stricken because they concern relief based on “the results of protected communications, submissions, meetings, and advocacy directed to IID and other public official during the substation approval process.” (MPA iso Motion, 15:12-17.) Here, not only has Defendant failed to show that such request for relief concerns protected activities, but Defendant also misconstrues the function of the special motion under the anti-SLAPP statute. A claim is subject to an anti-SLAPP motion only if the conduct constituting the protected activity “itself is the wrong complained of.” (*Park v. Board of Trustees of Calif. State Univ.*, *supra*, 2 Cal.5th at 1060.) The allegation that Defendant retained benefits of Plaintiffs’ labor is not itself an allegation of a protected activity. Moreover, prayer for relief made in pleading are not causes of action that could be subject to the special motion to strike under anti-SLAPP statute because it is a remedy and not a separate claim. (*See Marlin v. Amico Venezia, LLC* (2007) 154 Cal.App.4th 154 [injunction is a remedy, not a cause of action].)

Based on the foregoing, because Defendant has not demonstrated that the defamation action is based on any protected activity, Defendant has failed to meet its initial burden. Therefore, the analysis stops here, and no burden shifts to Plaintiffs to satisfy the second prong of the anti-SLAPP motion.

Plaintiff’s Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Plaintiff’s Request for Judicial Notice GRANTED as to items 1-7 GRANTED.

Defendant’s Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Defendant’s Anti-SLAPP Motion DENIED.

Case Management Conference confirmed for October 8, 2026

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602661	DEVECCHI VS KIA AMERICA, INC.	HEARING RE: MOTION TO STRIKE COMPLAINT OF ROBERT DEVECCHI BY KIA AMERICA, INC.

Tentative Ruling: “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains “irrelevant, false, or improper matter” or “*not*